

IN THE HIGH COURT OF TANZANIA
(DAR ES SALAAM DISTRICT REGISTRY)

AT DAR ES SALAAM

CRIMINAL APPLICATION NO. 274 OF 2018

DIRECTOR OF PUBLIC PROSECUTION.....APPLICANT

VERSUS

EVANCE ODIAMBO BENSONRESPONDENT

(From the decision of the District of Kinondoni at Kinondoni)

(Kiliwa- Esq, RM.)

Dated 15th May, 2015

in

Criminal Appeal No. 310 of 2011

RULING

26th February & 16th April 2021

AK. Rwizile, J

This application is for extension of time. The applicant who appeared to be aggrieved by the decision of the trial court advanced an appeal. It was later struck out by this court because it was filed out of time and there was no application to apply for its extension. Following that order, the applicant properly filed this application seeking leave to appeal out of time. In actual fact, it occurred in 2011, that the respondent was arraigned on several counts of forgery and uttering false documents. Upon hearing the case, he was acquitted. Even though the applicant was aggrieved, did not file his appeal in time.

This time, the applicant has approached this court under section 379(2) of the Criminal Procedure Code, asking for extension of time to file the same. The respondent could not easily be traced. This brought an amount of delay which was caused by failure to effect service. It was ultimately published as the law requires. It was done in the Habari Leo daily circulating news paper on consecutive dates of 24th, 26th and 28th April 2020. Despite all these efforts, the respondent did not show up. This application therefore was heard *ex parte*.

The applicant enjoying representation of Mr. Kisima learned State Attorney, submitted on the basis of the affidavit supporting this application as sworn by Ellen Masululi State Attorney, that this application should be granted. It was his view that the cause of delay is the fact that when the decision was made in 15th May 2018, the complainant was sick at Singida. The complainant therefore, failed to sort of instruct the applicant to prefer an appeal or not. By the time, that happened, time to appeal had elapsed. He therefore asked this court to grant the application.

Having heard the application, I have to start by pointing out at the position of the law under which this application is sought. The law under which the application is pegged states as hereunder;

379.-(1) Subject to subsection (2), no appeal under section 378 shall be entertained unless the Director of Public Prosecutions or a person acting under his instructions-

(a) has given notice of his intention to appeal to the subordinate court within thirty days of the acquittal, finding, sentence or order against which he wishes to appeal and the notice of appeal shall institute the appeal; and

(b) has lodged his petition of appeal within forty-five days from the date of such acquittal, finding, sentence or order; save that in computing the said period of forty-five days the time requisite for obtaining a copy of the proceedings, judgment or order appealed against or of the record of proceedings in the case shall be excluded.

(2) The High Court may, for good cause, admit an appeal notwithstanding that the periods of limitation prescribed in this section have elapsed.

From the record, it is crystal clear that the applicant filed a notice of intention to appeal in time. This complied with the requirement of the law in one party that an appeal was instituted in time. But second, the applicant was to lodge an appeal in 45 days of the decision which the applicant failed to do. Having failed to follow the requirement of the law under subsection 1 (b), the court is empowered to extend time upon the applicant showing good cause. This good cause must be shown by the applicant in simple and clear terms.

The applicant has alleged the complainant was sick at the time the decision was made. In criminal procedure obtaining here, cases in the subordinate courts save the Primary court are prosecuted by the applicant. i.e The Republic through the Director of Public Prosecutions. I am saying this with the purpose, because under section 2 of the CPA, the *Complainant* "in a private prosecution, means the private prosecutor or the person making the complaint before the court and, in all public prosecutions, means the person presenting the case on behalf of the Republic before the court.

It is explicitly stated therefore that since there was no private prosecution at all. All prosecutions were done by the applicant as the complainant. In all fours therefore, it was the duty of the applicant to consider preferring the appeal because it is the same person who prosecuted it. The applicant cannot and should not be instructed by any person to prefer any charge or an appeal. Since doing so would be tantamount to defeating the purpose for which section 9 of the National Prosecution Services Act was enacted for. The same gives such powers, which are exercisable in the spirit of need to do justice, the need to prevent abuse of legal process, take matter at the public interest and have control of criminal prosecutions. This spirit is carried on as well under section 8 of the same Act.

The applicant therefore, has to show cause, sufficient to warrant grant of the same. The crucial issue for my determination is whether or not the applicant has shown good cause for delay. The law on the issue is now well established. It is trite, as held in the case of **Joel Silomba vs The Republic**, Criminal Application NO. 5 OF 2012, CA, (Unreported), that in considering whether or not to grant such extension of time, courts take into account these factors:

- (i) *the length of the delay;*
- (ii) *the reason for the delay: was the delay caused or contributed by the dilatory conduct of the applicant?*
- (iii) *whether there is an arguable case, such as, whether there is a point of law or the illegality or otherwise of the decision sought to be challenged; and/or*
- (iv) *the degree of prejudice to the opposite party if the application is granted.*

See, also cases of **Shanti v. Hindocha & Others** [1973] E.A. 207, **Principal Secretary, Ministry of Defence and National Service v. Devram Valambia** [1992] T.L.R. 185, **VIP Engineering and Marketing LTD & Two Others v. Citibank Tanzania Ltd**, Consolidated Civil References No. 6,7, & 8 of 2006, **Eliya Anderson v.R**, Criminal Application No. 2 of 2013 and **Tanzania Revenue Authority v. Tango Transport Co. Ltd**, Consolidated Civil Application No. 4 of 2009 (all unreported).

I must confess and be pardoned for so doing, that I do not see any of the requirements stated above complied with by the applicant. I am aware that this application is taken ex parte, but as a matter of principle the applicant ought not to expect an easy ride. Cases are to be prosecuted and so decided on merit. I therefore dismiss this applicant for want of merit.

AK. Rwizile

Judge



Recoverable Signature

X

Signed by: A.K.RWIZILE

